

Now that we have a (tentative) August 27 hearing date on the AG/EES subpoena, that are several issues that need to be decided in connection with the EES subpoena:

1. Do we file a cross motion seeking to disqualify Lockyer and his deputy? I think we should, and see no reason to wait.
2. Do we agree to a confidentiality order that allows the AG to share documents with other state AGs? Richard, this is up to you. We were against it, but Mike Kirby believes it could help with the litigation concerning the Dunn Committee subpoena.
3. Do we begin producing EES California documents before the August 27 hearing? Mike, this is up to you. Just let me know.

I think that's it for now. Thanks for your help.

-----Original Message-----

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Subject: FW: Analysis of Potential Motion to Disqualify Attorney General: Attorney Client Privileged Communication

> <<Memorandum re Disqualification of AG>> Here is our initial analysis of
> the merits of a motion to disqualify Bill Lockyer from the California AG's
> investigation of the Enron entities.
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